

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

ZAKIYA FRANKLIN and DANIEL CADOGAN,

SUMMONS

Plaintiffs,

-against-

THE CITY OF NEW YORK, and SGT. DAVID A.
GRIECO, SHIELD NO. 3830,

Plaintiffs designates Kings
County as the place of trial.
The basis of the venue is locus
of occurrence.

Defendants.

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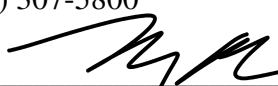
To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 18, 2020

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.

Attorneys for Plaintiffs
250 West 57th Street - Suite 1619
New York, New York 10107
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

Defendants' Addresses:

The City of New York
100 Church Street
New York, NY 10007

SGT. DAVID A. GRIECO, SHIELD NO. 3830
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

ZAKIYA FRANKLIN and DANIEL CADOGAN,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, and SGT. DAVID A.
GRIECO, SHIELD NO. 3830,

Defendants.

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Plaintiffs, ZAKIYA FRANKLIN and DANIEL CADOGAN, by their attorneys
FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C. as for their Verified Complaint, allege
the following, upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was
and still is a municipal corporation duly organized and existing under the laws of the State of New
York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its
agents, servants and employees operate, maintained and controlled the Police Department of the
City of New York, including all Police Officers thereof.

3. At all times hereinafter mentioned, on September 20, 2019, Defendant SGT.
DAVID A. GRIECO, SHIELD NO. 3830, was employed by Defendant THE CITY OF NEW
YORK, as a police officer.

4. At all times hereinafter mentioned, Defendant SGT. DAVID A. GRIECO, SHIELD NO. 3830, was acting within the scope of his employment as a police officer with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

6. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of SGT. DAVID A. GRIECO, SHIELD NO. 3830 as said risk attaches to the public consumers of the services provided by The New York City Police Department.

7. At all times hereinafter mentioned Defendant, THE CITY OF NEW YORK, employed SGT. DAVID A. GRIECO, SHIELD NO. 3830.

8. At all relevant times, the individual defendant was acting pursuant to their authority as a NEW YORK CITY POLICE DEPARTMENT employee. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendant were taken in the course of their duty and were incidental to their otherwise lawful function as an agent, servant and employee of the New York City Police Department.

9. The Plaintiffs, were, on September 20, 2019, and at all times, residents of the County of Kings, State of New York, residing at 157 Martense Avenue, Brooklyn, NY, 11226.

CONDITIONS PRECEDENT

10. On or about December 11, 2019, and within ninety (90) days of the occurrence complained of hereinafter, Plaintiffs duly served a Notices of claim upon the City of New York in the manner and mode required by law.

11. At least thirty (30) days have elapsed since the service of the claim prior to the Commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

12. On May 19, 2020, Plaintiffs complied with the request of the municipal Defendant for an oral examination pursuant to Section 50-H of the General Municipal Law.

JURISDICTION AND VENUE

13. The Plaintiffs brings this action in the Supreme Court, State of New York, County of Kings, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

14. The Plaintiffs properly designates Kings County as the place of trial. The basis of the venue is the locus of the occurrence.

STATEMENT OF FACTS

15. On or about September 20, 2019, at approximately 6:00 a.m., plaintiffs were lawful residents in their home located at 157 Martense Street, Brooklyn, NY 11226.

16. At the above specified time and place, without justification or provocation and without a valid warrant, the defendants, THE CITY OF NEW YORK and SGT. DAVID A. GRIECO, SHIELD NO. 3830, assaulted, confined, unduly restrained, falsely arrested, and falsely imprisoned plaintiffs.

17. Defendants, THE CITY OF NEW YORK and SGT. DAVID A. GRIECO, SHIELD NO. 3830, falsely arrested and falsely imprisoned plaintiffs.

18. Plaintiff CADOGAN was held at the 67th Precinct for approximately twenty four (24) hours and then Central Booking for approximately three (3) hours.

19. Plaintiff FRANKLIN was held at the location of arrest for several hours and had her home ransacked by the defendants.

20. Plaintiff CADOGAN was forced to attend Court on multiple occasions.

21. On November 21, 2019, all charges against plaintiff CADOGAN were dismissed pursuant to CPL 160.50 and the action was terminated in plaintiff's favor.

AS AND FOR A FIRST CAUSE OF ACTION

22. Plaintiffs repeat, reallege and reiterate the allegations contained in paragraphs "1" through "21", inclusive, as though each were set forth at length herein.

23. On September 20, 2019, and thereafter, in the City of New York, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted and battered plaintiffs without any right or grounds thereof.

24. Defendant, SGT. DAVID A. GRIECO, SHIELD NO. 3830, injured and maimed the plaintiffs such that they were unable to move freely or otherwise leave the scene without apprising them as to why he was being placed under arrest.

25. Plaintiffs were detained, arrested, imprisoned, assaulted and battered by the defendants, their agents, servants and/or employees without probable cause and/or justification.

26. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned arrest, detention, imprisonment, assault and battery of plaintiffs.

27. Defendants, their agents, servants and/or employees, intended to confine the plaintiffs, in that plaintiffs were conscious of the confinement; plaintiffs did not consent to the confinement; and that the confinement was not privileged.

28. At the time of his unlawful arrest, detention and imprisonment, plaintiffs, has not committed or attempted to commit any illegal act or crime.

29. At the time of plaintiffs' unlawful arrest, defendants knew that the aforementioned arrest and detention were false and without probable cause.

30. The said false arrest and false imprisonment cause plaintiffs to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation.

31. Defendants placed plaintiff CADOGAN under arrest and falsely charged him with criminal possession of a weapon.

32. Plaintiffs were in police custody, unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive plaintiffs of their rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

33. It is alleged that Defendants THE CITY OF NEW YORK, SGT. DAVID A. GRIECO, SHIELD NO. 3830, their agents, servants and employees, maliciously and intentionally detained, falsely detained, falsely imprisoned and humiliated plaintiffs, in violation of their constitutional rights.

34. Plaintiff CADOGAN was released from custody on September 21, 2019.

35. Plaintiff FRANKLIN was released from custody on September 20, 2019.

36. As a direct result of the above defendants' actions, plaintiffs suffered and continue to suffer severe mental anguish, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

37. Plaintiffs, suffered – and continues to suffer – greatly, was and is physically and emotional traumatized by this excessive use of force, detention and imprisonment.

38. The false criminal arrest and wrongful imprisonment of plaintiffs, because of defendants' knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

39. As a direct and proximate result of defendants' actions, plaintiffs were deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

40. As a result of the foregoing, plaintiffs demand judgment against Defendants, THE CITY OF NEW YORK AND SGT. DAVID A. GRIECO, SHIELD NO. 3830, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

41. Plaintiffs repeats, realleges and reiterates the allegations contained in paragraphs "1" through "40," inclusive, as though each were set forth fully at length herein.

42. On September 20, 2019, at approximately 6:00 a.m., plaintiffs were lawfully inside their home located at 157 Martense Street, Brooklyn, NY 11226, in the City and State of New York when they were assaulted and battered by SGT. DAVID A. GRIECO, SHIELD NO. 3830, employed by defendant, THE CITY OF NEW YORK.

43. On September 20, 2019, defendants commenced a criminal proceeding against plaintiff CADOGAN knowing that plaintiff had not committed any of the alleged criminal acts.

44. On November 21, 2019, the criminal action was terminated pursuant to CPL 160.50 in favor of the plaintiff CADOGAN.

45. Defendants lacked probable cause to for the arrest and criminal proceeding, to wit, the defendants did not witness any criminal acts, the defendants did not observe, not did they have any credible evidence that plaintiff was in criminal possession of a firearm, nor did any of the facts indicate that plaintiff was ever in possession of a weapon.

46. Despite this lack of probable cause, know to defendants immediately and prior to the arrest of plaintiff CADOGAN, defendants still falsely arrested plaintiff and maliciously prosecuted him for crimes he did not commit.

47. Defendants acted with improper motive and actual malice by knowingly arresting and continuing to prosecute plaintiff CADOGAN after he was found not to be in possession of any weapons.

48. Furthermore, defendants continued the malicious prosecution knowing that they lacked a proper search warrant.

49. As a result of the above mentioned, the plaintiff CADOGAN, was injured, became sick, sore, lame, and disabled, and belief, will continue to suffer and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer from said injuries.

50. As a result of the foregoing, plaintiff CADOGAN, demands judgment against Defendants, THE CITY OF NEW YORK AND SGT. DAVID A. GRIECO, SHIELD NO. 3830, SHIELD NO. 10268, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

51. Plaintiffs repeat, reallege and reiterate the allegations contained in paragraphs “1” through “50,” inclusive, as though each were set forth fully at length herein.

52. The actions of defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiffs’ civil rights.

53. Defendants deprived plaintiffs of their liberty in violation of their civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

54. Defendants violated the civil and constitutional rights of plaintiffs as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

55. Defendants actions were undertaken under color of law and would not have existed but for said defendants using their official power.

56. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department have, as a matter of policy, failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individual officer engaged in such practices, despite knowing the improper policy and procedures used by said officers, named SGT DAVID A. GRIECO.

57. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of plaintiffs and others similarly situated.

58. As a result of the foregoing, plaintiffs demand judgment against Defendants, THE CITY OF NEW YORK AND SGT. DAVID A. GRIECO, SHIELD NO. 3830, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

59. Plaintiffs repeat, reallege and reiterate the allegations contained in paragraphs “1” through “58,” inclusive, as though each were set forth fully at length herein.

60. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant SGT. DAVID A. GRIECO, SHIELD NO. 3830, with the knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

61. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant SGT. DAVID A. GRIECO, SHIELD NO. 3830, with knowledge that said police officer lacked the department to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

62. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant SGT. DAVID A. GRIECO, SHIELD NO. 3830, with knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and therefore, was unfit to be a police officer.

63. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including Defendants SGT. DAVID A. GRIECO, SHIELD NO. 3830, with knowledge that said police officer had vicious propensities and was therefore unfit to be a police officer.

64. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Defendant SGT. DAVID A. GRIECO, SHIELD NO. 3830, with knowledge that said police officer has forty six (46) CCRB allegations, twenty one (21) CCRB complaints, eight (8) substantiated allegations and thirty six (36) civil rights lawsuits against him.

65. As a result of the foregoing, plaintiffs have suffered serious and severe emotional distress, personal injuries and loss to their reputation.

66. As a result of the foregoing, plaintiffs demand judgment against Defendants, THE CITY OF NEW YORK and SGT. DAVID A. GRIECO, SHIELD NO. 3830, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

67. Plaintiffs repeat, reallege and reiterate the allegations contained in paragraphs “1” through “66,” inclusive, as though each were set forth fully at length herein.

68. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiffs; the assault and battery committed by defendants against plaintiffs; the violation of plaintiffs’ civil and constitutional rights; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiffs.

69. As a result of the foregoing, plaintiffs demand judgments against Defendants, THE CITY OF NEW YORK and SGT. DAVID A. GRIECO, SHIELD NO. 3830, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

70. Plaintiffs repeat, reallege and reiterate the allegations contained in paragraphs “1” through “69,” inclusive, as though each were set forth fully at length herein.

71. Defendants’ conduct towards plaintiffs was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

72. Defendants acted with the desire to cause plaintiffs mental distress and physical distress and pain, or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

73. Defendants acted with utter and reckless disregard of the consequences of their actions.

74. As a result of the foregoing, plaintiffs have sustained severe and debilitating physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

75. As a result of the foregoing, plaintiffs demand judgment against Defendants, THE CITY OF NEW YORK and SGT. DAVID A. GRIECO, SHIELD NO. 3830, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN SEVENTH CAUSE OF ACTION

76. Plaintiffs repeat, reallege and reiterate the allegations contained in paragraphs “1” through “75,” inclusive, as though each were set forth fully herein.

77. Upon information and belief, defendant, THE CITY OF NEW YORK, through other police officers who are unknown at this time, by their conduct and under color of state law, had opportunities to intercede on behalf of plaintiffs to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

78. As a direct and proximate result, plaintiffs suffered injuries and damages described above.

79. As a result of the foregoing, plaintiffs demand judgment against Defendants, THE CITY OF NEW YORK and SGT. DAVID A. GRIECO, SHIELD NO. 3830, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

80. That by reason of the foregoing, plaintiffs were severely injured and damaged, sustained personal injuries, bruises, trauma, mental distress and other injuries; their civil rights were violated. Plaintiffs were rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some injuries which are permanent in nature and duration, and plaintiffs will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiffs will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiffs' great damage.

81. Plaintiffs suffered a deprivation of their civil rights and liberty, were falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against them; assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, and fear and anxiety as a result of this incident.

82. Plaintiffs were deprived of their freedom.

83. As a result of the aforementioned acts, Defendants violated the rights of plaintiffs secured to them under the Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

84. Plaintiffs were caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

85. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

86. As a result of the aforesaid, plaintiffs were damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs, respectfully demand judgment against defendants, THE CITY OF NEW YORK and SGT. DAVID A. GRIECO, SHIELD NO. 3830, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York
December 18, 2020

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.
Attorneys for Plaintiffs
250 West 57th Street - Suite 1619
New York, New York 10107
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C., attorneys of record for the plaintiffs. I have read the annexed

SUMMONS and VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiffs is because plaintiffs reside outside of the county wherein your affirmant maintains offices.

Dated: New York, New York
December 18, 2020



NICOLAS BAGLEY, ESQ.